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File No.: EXP202410311

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 16, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On June 16, 2024, a complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against the General Directorate of the Civil Guard for not having duly attended to the rights of access and deletion of their personal data, through which they state the following:
"First. - As a result of a false complaint on ***DATE.1, police proceedings were opened (...) against this complainant, instructed by the CIVIL GUARD STATION OF ***LOCALITY.1 as a supposed case of gender-based violence. The interested party was acquitted of all responsibility by a final judgment dated ***DATE.2. The Court communicated the finality to the G.C. command on ***DATE.3. (DOC.1)
Second. - On January 5, 2017, a request for cancellation of all police records was submitted to the MINISTRY OF INTERIOR using the standardized form provided to them. (DOC 2)
On January 23, 2017, the Civil Guard requested a certification of finality. (DOC.3)
On March 9, 2017, the Court (...) certified the finality and sent a copy to the Civil Guard command. (DOC.4)
On July 12, 2017, the Civil Guard resolved to archive the request due to expiration. (DOC.5)
On March 20, 2018, another request for cancellation of police records was submitted to the administration, expressly mentioning the police proceedings of ***DATE.1. (Doc. 6)
On April 3, 2018, a third request was submitted using another standardized form provided to them, expressly mentioning the VIOGEN system and the police report of ***DATE.1 (Doc. 7).

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Third. - By letter from the Ministry of Interior dated April 16, 2018, it was communicated that the administration has proceeded to "CANCEL all police records that are in our files up to the date of this Resolution." (DOC.8).
Fourth. - This complainant has been (...).

In March 2024, they were informed of the initiation of a file to revoke the license that supports the exercise of said collector activity.

Among other false facts on which this revocation is based, the existence of police records due to VIOGEN resulting from the police proceedings of (...). Records that have already been canceled (DOC.8).

Fifth. - In light of this situation, on March 19, 2024, they requested information about the police records that exist and the reason why they have not been canceled, and reiterated the request for cancellation. (DOC.9)

By letter dated April 24, 2024 (DOC.10), they were informed that the VIOGEN records from ***DATE.1 are still noted (...)

And the reason for the non-cancellation is stated as the interested party has not requested such cancellation.

Sixth. - The administration has revoked their collector's license, causing significant harm not only materially by preventing them from maintaining a (...), but also reputationally given the prestige they maintained as (...).

Based on the above, they request:

- The administration be required to cancel the noted data.

- The identity of the official responsible for the new entry and officials who have had access to it.
- An administrative sanction for the infringements committed.
- Compensation for damages.

Along with the complaint, the following documentation is attached:

- Communication from the Criminal Court (...) to the Civil Guard command of ***LOCALITY.2 on ***DATE.3, informing of the finality of the acquittal judgment of the proceedings XX/XXXX dated May 21 of (...), in relation to the police report of the Civil Guard of ***LOCALITY.1 dated ***DATE.1. (DOC.1)

- "Request for cancellation of records" in the "Criminality" file of the General Directorate of the Civil Guard completed, signed, and dated by the complainant on January 5, 2017 (DOC 2)

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- Official letter from the General Directorate of the Civil Guard dated January 23, 2017, requesting the claimant to provide a "Judicial Certification that certifies the finality of the Order of the Summary Trial XX/XXXX, considering 'finality' as the impossibility of appealing against said judgment or order, for which they must address the Criminal Court (...)" (DOC.3)

- Order dated May 21, (...) from the Criminal Court (...) corresponding to proceedings XX/XXXX indicating that "The judgment issued on ***DATE.2 in this case is declared final and executable" (DOC.4)

- Resolution from the General Directorate of the Civil Guard dated July 12, 2017, declaring the expiration of the administrative procedure for the request for cancellation of records due to the lapse of the established period without the claimant providing the requested documentation (DOC.5)

- Request for cancellation of police records listed in the "INTPOL" file of the Civil Guard dated and submitted by the claimant on March 20, 2018, through which they request the cancellation of police proceedings from ***DATE.1 and in the procedure XX/XXXX-V (Doc. 6)

- Document "Request for Cancellation of Police Records VioGén" submitted and signed by the claimant and addressed to the Secretary of State for Security, Coordination and Studies Office, registered on April 2, 2018, through which they requested to exercise the right to cancel personal data listed in the VioGén file, regarding the police proceedings (...) from the Civil Guard Command of ***LOCALITY.1 from ***DATE.1 and regarding the proceedings (...)(Doc. 7). This request was submitted to the Civil Guard, (...).

- Document from the General Directorate of the Civil Guard dated April 16, 2018, indicating that "(...) it has been resolved to grant your request and cancel all police records that are in our files up to the date of this resolution." (DOC.8).

- As (DOC.9), document from the claimant addressed to the "General Directorate of Coordination and Studies of the Ministry of the Interior," dated January 18, 2024, and submitted to the General Registry of the Government Delegation of (...) on March 19, 2024, in which it states that "I have never been convicted of any crime related to gender-based violence, having been subject to a (...) and having communicated this circumstance to the administration and requested the cancellation of any police record in this regard in 2018; that I have become aware, through incorporation into administrative files unrelated to the purpose of the gender-based violence registry, that personal data and police records exist in that administration, incorporated into databases dependent on this VIOGEN from the year (...)." It invokes Organic Law 7/2021, of May 26, on the protection of personal data for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions and requests:

1. To be informed:

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o

"From the content of the data contained in the VIOGEN file as of the date of the request

o

Reason why they have not been deleted despite having requested it.

o

Persons responsible for conducting the reviews of Article 8 of Organic Law 7/2021, of May 26, and the justifications they provided for its retention

o

Individuals or officials who have had access to this data since the year (...) and for what purpose."

2. "That the request for deletion made previously is reiterated."

-

As (DOC.10) a document dated April 24, 2024, from the Secretary of State for Security (General Directorate of Coordination and Studies) in response to your previous letter regarding the right of access to the data contained in the VioGén system file, and they inform you:

o

Of the Data Controller

o

Of the purpose of the processing ("Protection of victims, prevention of criminal offenses related to gender-based violence. Additionally, it will pursue complementary statistical, scientific, and assistance purposes")

o

Of the legitimacy of the processing ("Organic Law 2/1986, of March 13, LECRIM; Organic Law 1/2004, of December 28, and Article 11 of Organic Law 7/2021, of May 27, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions")

o

Of the origin of the data ("The data comes from actions carried out by the competent authorities concerning individuals who are victims of acts that may be classified as gender-based violence and individuals involved in judicial proceedings and judicial investigations related to those same acts")

o

Of the recipients ("No data communication is anticipated, except those arising from legal obligations, such as Judicial Authorities or the Public Prosecutor's Office")

o

Of international transfers, which are not anticipated

o

Of automated decisions, which are not made

o

Of retention ("The data will be retained for the time necessary to fulfill the purpose for which it was collected in accordance with Article 8 of the Organic Law on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, with the provisions of the regulations on archives and administrative documentation also being applicable")

o

Of the rights

o

Regarding the data concerning your person, they indicate that it includes Name, Surname, Date of Birth, ID Number, and Complaint dated (...), with no address or phone number recorded.

o

Reason why your data has not been deleted:

"In relation to the exercise of the right to deletion, in accordance with the provisions of Article 8 of Organic Law 7/2021, of May 26,

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May, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter LOPDP), in general, the data will be deleted when 20 years have passed since the case ceased to be attended to by the police or the police protection ended, provided that during that entire period there have been no reiterations, recidivisms, or breaches of judicial measures or penalties.

The data of individuals involved in judicial proceedings and investigations related to the cases may be deleted, at the request of the interested party, when they are no longer necessary and there is a firm judicial resolution of definitive dismissal, a firm acquittal sentence, and the cancellation of the criminal records (judicial) derived from them.

We inform you that your request for data deletion in the VioGén System has not been received in this General Directorate.

It is informed that the necessary documentation, as well as the established procedure to exercise your right, can be found on the website of the Ministry of the Interior, the link is (...)

or

Responsible parties who have conducted the reviews “The data controller in accordance with the provisions of the current regulation LO 7/2021”

or

Individuals or Officials who have had access to your data since the year (...) and for what purpose: “We inform you that this information does not fall within the right of access in the police framework to transfer that information in correspondence with Article 21 of the LOPDP and the interpretation that the Judicial Authority has been making (See e.g. SAN: SAN 7/2024 – ECLI:ES:AN:2024:7)”

or

Exercise of Rights

SECOND: On July 15, 2024, the Director of this Agency resolved to dismiss the claim presented.

“In the present case, from the review of the documentation provided along with the claim, it is clear that the entity being claimed denied the request in a reasoned manner, in accordance with the principles established in the data protection regulations.”

THIRD: Dissatisfied with the resolution of inadmissibility issued by the Director of this Agency, on August 14, 2024, the appellant submitted a written statement, in which they interpret that from the document received from the General Directorate of the Civil Guard, it follows that on April 16, 2018, the entity being claimed canceled the criminal records included in the VioGén System. According to their assertion, it subsequently illegally re-included the canceled records and used them in a procedure for revocation of collector authorizations. From the aforementioned facts, they conclude that the entity being claimed has illegally maintained the officially deleted records as of April 16, 2018, in some parallel database to later re-include them in their official databases and use them in a procedure.

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Upon reviewing the corresponding file, it was concluded that

"From the documentation attached to the claim, it is evident that on March 20, 2018, the appellant requested the cancellation of all their police records that appeared in the INTPOL file. On April 16, 2018, the request made was addressed by the GENERAL DIRECTORATE OF THE GUARDIA CIVIL, proceeding with the cancellation of the police records that were in their files up to the date of issuance of the resolution. Thus, from this documentation, it is clear that the responding party attended to the request made.

According to what was stated in the claim, in March, the appellant was informed of the initiation of a file, (...). The file concluded with the revocation of the license, basing this decision on the existence of

police records from the VIOGEN file. From the act issued, it was concluded that to justify the resolution, the records that were interpreted as having been canceled by the GENERAL DIRECTORATE OF THE GUARDIA CIVIL by virtue of the resolution issued on April 16, 2018, were used.

In this regard, it should be noted that the response issued on April 16, 2018, resolves the request made on March 20, 2018, concerning the data contained in the INTPOL file, not regarding the data incorporated into VIOGEN, for which the GENERAL DIRECTORATE OF THE GUARDIA CIVIL is not responsible, but rather the SECRETARY OF STATE FOR SECURITY of the Ministry of the Interior. From the documentation provided by the appellant, it is evident that in the request for cancellation of VIOGEN police records, submitted on April 2, 2018, the receipt stamp from the Command of the Guardia Civil appears (DOC.7, PDF2AEPD.pdf), therefore, in accordance with the provisions of Article 14 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, the request should have been forwarded for processing to the administrative body that was indicated as the recipient, the SECRETARY OF STATE FOR SECURITY of the Ministry of the Interior, although this data controller has stated, in the document dated April 24, 2024, that they have no record of having received any request for cancellation of police records from the appellant.

Consequently, it is appropriate for the General Subdirectorate of Data Inspection to analyze the aforementioned facts.

(...) Consequently, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the appeal for reconsideration filed by Mr. A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on July 15, 2024, so that the claim follows the procedure established in Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights."

This resolution was signed on November 5, 2024.

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FOURTH: As a consequence of the acceptance of the aforementioned Recurso de Reposición, the present Rights Procedure was initiated, transferring the documentation to the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES (hereinafter, the claimed party), so that within a period of ten working days it could present the arguments it deemed appropriate.

The claimed party submitted a document to this AEPD stating, in summary, that

"1st. The procedure for the deletion of police records implemented by the General Directorates of the Police and the Civil Guard is independent and does not include in any case the process for the deletion of data from the treatment known as the VioGén System (Comprehensive Monitoring System for Cases of Gender Violence). The responsible party for the treatment in this case is the head of the General Directorate of Coordination and Studies and not any designated person in those General Directorates.

2nd. The concept of police records and all information regarding the procedure for exercising the right to delete these treatments can be found at the following web link: <https://www.interior.gob.es/opencms/es/servicios-al-ciudadano/tramites-y-gestiones/gestion-deantecedentes-policiales/procedimiento/>

3rd. The information regarding the procedure and requirements for deleting data from the VioGén System treatment is established at the following web link: <https://www.interior.gob.es/opencms/es/servicios-al-ciudadano/violencia-contra-la-mujer/supresionde-datos-sistema-viogen/>. However, on the date when a request was supposedly submitted, in the year 2018, the data from the then file "VioGén System" could be found in Order INT/1202/2011, of May 4, which regulates personal data files of the Ministry of the Interior.

4th. Without prejudice to what is stated in the previous point, it should be noted that the requirements and the deadline for deleting data in the VioGén System as indicated in the documentation is as follows: "Victim data: The data will be retained for as long as necessary to fulfill the purpose for which it

was collected in accordance with Article 8 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter LOPDP). Likewise, taking into account the possible legal responsibilities that may arise from such purpose and the processing of the data, the provisions of the regulations on archives and administrative documentation shall also apply. In general, data will be deleted when 20 years have passed since the case ceased to be attended to by the police or police protection ended, provided that during that entire period there have been no reiterations, recidivisms, or breaches of judicial measures or penalties.

Data of individuals involved in judicial proceedings and investigations related to the cases: May be deleted upon request as long as there is a firm judicial resolution of definitive dismissal, a judgment.”

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final judgment of acquittal and the cancellation of the criminal records (judicial) derived from the same.

5th It is emphasized that the VioGén System is not a treatment of criminal records (SIRAJ, whose responsible parties are located in the Ministry of Justice) or police records (whose responsible parties are in the structure of the General Directorates of the Police or the Civil Guard), but rather a specific treatment of the Secretary of State for Security (General Directorate of Coordination and Studies), aimed at achieving the protection of direct and indirect victims of gender-based violence, which is an independent and specific objective of those and with different requirements to assess the need for treatment and the exercise of the right to suppression.

Regarding the factual issues:

1st It is reported to us that: “On 03/20/18, the claimant requested the cancellation of all their police records from the respondent, expressly mentioning the police proceedings of ***DATE.1 (instructed for an alleged crime of gender-based violence). On 04/03/18, they submitted a written request using the VIOGEN police record cancellation application model, referencing the previously mentioned report. On 04/16/18, the respondent communicated to the claimant that “it has been resolved to grant your request and CANCEL all police records that are in our files up to the date of this resolution.”

There is no record in the files of this General Directorate of the request directed to the Central Administration of the VioGén System (dated 03/20/2018), nor is there any record of the response made by said Administration (dated 04/16/2018).

2nd It is stated that: “The claimant states that (...). The file has concluded with the revocation of the license, basing this decision on the existence of police records by VIOGEN. According to them, the license has been revoked based on records that had been canceled by virtue of the resolution issued on 04/16/18.”

This General Directorate does not have access to the complete file from the General Directorate of the Civil Guard regarding the revocation of the historical ammunition collector's license and cannot assess the reason for the resolution of the competent authority. However, Article 29.1 b) of Organic Law 4/2015, of March 30, on the protection of citizen security states that: “For the granting of licenses, permits, and authorizations, the conduct and background of the interested party will be taken into account.” Similarly, the treatment documented in the National Arms Registry included in Article 9 of Royal Decree 137/1993, of January 29, which approves the Arms Regulation, includes among other categories of data the following: “...(…)...criminal and administrative infractions, conduct report and background,...(…)...”

Information was requested from the Weapons and Explosives Headquarters of the General Directorate of the Civil Guard regarding whether the claims made by the claimant corresponded with what was recorded in the National Arms Registry, and this General Directorate was informed that it does.

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An administrative revocation occurred related to this individual, and the reasoning for the revocation did not take into account or include the possible data contained in the VioGén System.

3rd Similarly, it is stated that: "On 03/19/24, the claimant submitted a document requesting information regarding the police records that exist and the reasons why they have not been canceled, reiterating that they should proceed with the cancellation. On 04/24/24, the respondent replied that the VIOGEN records dated ***DATE.1 are still noted, that the data will be deleted when 20 years have passed since the case ceased to be attended to by the police without any reiteration, recidivism, or breaches of judicial measures or penalties during that period. (...) We inform you that this General Directorate has not received your request for data in the VioGén System."

In light of these statements, a written response to the request for the exercise of the right of access dated March 19, 2024, submitted by the claimant is attached, in which not only were they informed of the partial issues of the previous paragraph, but they were also communicated the conditions, forms, and necessary documentation to be provided in order to address their right to deletion.

"In relation to the exercise of the right to deletion, in accordance with the provisions of Article 8 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter LOPDP), in general, data will be deleted when 20 years have passed since the case ceased to be attended to by the police or the police protection ended without any reiteration, recidivism, or breaches of judicial measures or penalties during that entire period.

Data of individuals involved in judicial proceedings and investigations related to the cases may be deleted, at the request of the interested party, when they are no longer necessary and there is a firm judicial resolution of definitive dismissal, a firm acquittal sentence, and the cancellation of the criminal records (judicial) derived from them.

We inform you that this General Directorate has not received your request for data deletion in the VioGén System.

It is reported that the necessary documentation, as well as the established procedure to exercise your right, is available on the website of the Ministry of the Interior, the link is:

<https://www.interior.gob.es/opencms/es/servicios-al-ciudadano/violencia-contra-la-mujer/supresion-de-datos-sistema-viogen/>"

This individual has NOT formally requested the deletion of their data before this Responsible Party nor has they provided any documentation that would allow the procedure to be carried out. (...)

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FIFTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may make any allegations they deem appropriate.

The claimant has indicated that "(...) on April 2, 2018, they requested the cancellation of records in the VIOGEN system, even in the standardized form provided by the administration, which included the competent body, and of which the administered, in accordance with the principle of legitimate trust in the administration, should not doubt (Docs. 6 and 7 already submitted).

The administrative body that receives it (and that provided the standardized form), if it is not the competent one, must send it to the competent body, according to reiterated jurisprudence.

However, it was even notified to the interested party that all records had been canceled (Doc. 8 already submitted).

And if the above is not sufficient, it should be noted that on 01/18/2024, a request was directed to the General Directorate of Studies and Coordination of MINISINT, explicitly reiterating the request for deletion of records made at that time without receiving an express response (Doc. 9 already submitted)

(...) – They did not cancel records for which the interested party requested cancellation, and whose

cancellation is warranted (since their request was not denied), and moreover, they were informed of the cancellation.

- The administration communicated its cancellation, but, however, years later it is found that this cancellation had not been carried out (...)

- Subsequently, these canceled records were used in an administrative procedure (...)"

SIXTH: After granting the respondent the opportunity to be heard, there is no record that any response has been received in this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the functions attributed to the data protection authorities by Article 49 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter, LO 7/2021), and as established in Article 48 of the aforementioned LO 7/2021 and according to the provisions of Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, Article 52 "Applicable regime to the procedures processed before the data protection authorities" of LO 7/2021 establishes that:

"1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been addressed, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall apply subsidiarily."

II

Applicable legal regime

Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation), establishes in its Article 2 a series of personal data processing activities to which it does not apply. Among these processing activities, subsection d) includes the processing of personal data "by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses, or for the execution of criminal sanctions, including protection against threats to public security and their prevention."

For processing of this nature, the current Organic Law 7/2021, of May 26, is applicable, through which Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or for the execution of criminal sanctions, and on the free movement of such data, is transposed into our legal system.

In this regard, this organic law aims, according to its first article, "to establish the rules relating to the

protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing, detecting, investigating, and prosecuting criminal offenses or for the execution of criminal sanctions, including protection and prevention against threats to public security."

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Likewise, Article Two, by defining its scope of application, establishes that this regulation will apply "to the total or partially automated processing of personal data, as well as to the non-automated processing of personal data contained or intended to be included in a file, carried out by the competent authorities, for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the enforcement of criminal sanctions, including the protection and prevention against threats to public safety."

III

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the obligations that pertain to them, as well as to address the complaints submitted by an interested party and investigate, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, Article 65.4 of the LOPDGDD has provided for a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not appointed any, so that they may analyze said complaints and respond to them within one month.

Thus, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to prove that it had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

The result of this forwarding of the complaint determined its admission for processing and, consequently, the opening of this rights procedure occurs due to the lack of attention to a request for the exercise of the rights established in LO 7/2021. The procedure regulated in Article 64.1 of the LOPDGDD is followed, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law."

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In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement for processing. Once this period has elapsed, the interested party may consider their claim accepted.

IV

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of said regulation. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing.

The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

The communication addressed to the interested party regarding their request must be expressed in a concise, intelligible, and easily accessible manner, using clear and simple language for all individuals, including those with disabilities. This information shall be provided free of charge.

The data controller shall inform the interested party in writing, without undue delay, about the status of their request, being understood as denied if one month has passed since its submission without it being expressly resolved and notified to the interested party.

V

Right of access

In accordance with the provisions of Article 22 of LO 7/2021:

"1. The interested party shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. In the event that processing is confirmed, the interested party shall have the right to access such personal data, as well as the following information:

- a) The purposes and the legal basis for the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been communicated, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period of the personal data, when possible, or, if not, the criteria used to determine such period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the interested party or the limitation of its processing.
- f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.

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g) The communication of personal data subject to processing, as well as any available information regarding its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the data controller processes a large amount of information related to the data subject and the latter exercises their right of access without specifying whether it refers to all or part of the data, the data controller may request the data subject to specify the request within ten days.

3. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure system that permanently guarantees access to all of their personal data. The notification informing the data subject of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in section 1, the data subject shall have the right to request it.

4. When the data subject chooses a means other than the one offered that incurs a disproportionate cost, the request will be considered excessive, and the data subject will bear the excess cost that their choice entails. In this case, the data controller is only required to ensure that the satisfaction of the right of access through the proposed means occurs without undue delay. If the data subject does not bear the excess cost, access will be provided through the means initially proposed by the data controller.

In this case, although a complaint is filed against the Civil Guard, its subject is related to the personal

data of the complaining party registered in the VioGén System, for which the General Directorate of Coordination and Studies of the Secretary of State for Security, Ministry of the Interior, is responsible. The proceedings indicate that the complaining party, by means of a document dated January 18, 2024, and submitted to the General Registry of the Government Delegation of (...) on March 19, 2024, requested the aforementioned General Directorate to be informed of the content of the data recorded in said VioGén file as of the date of the request... “persons or officials who have had access to this data since the year (...) and for what purpose.”

This request was processed by the indicated General Directorate of Coordination and Studies as an exercise of the right of access to the data registered in VioGén, responding to it on April 24, 2024, with the details noted in Fact One.

In light of this response, the complaining party filed a complaint with this AEPD, urging that they be provided with the identity of the officials who have had access to the registered information.

Regarding this issue, the response communicated to the complaining party by the General Directorate of Coordination and Studies correctly warned the following: “We inform you that this information does not fall within the right of access in the police framework to transfer that information in accordance with Article 21 of the LOPD.”

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and the interpretation that the Judicial Authority has been making (See e.g. SAN: SAN 7/2024 – ECLI:ES:AN:2024:7)”

In this Judgment, referring to a case of exercising the right of access to the medical history, the National Court expressly states that it subscribes to the reasons put forward in the appealed resolution issued by this AEPD, when it indicates that “the right of access is not configured as a means to obtain information regarding the identity of a third party who, within the organization of the data controller, may have accessed the medical history. Nor is it configured as a means to assess whether the accesses were adequately justified...”.

Therefore, the claim made by the claimant must be dismissed in relation to the exercised right of access.

VI

Right to Erasure

The processing of personal data for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions has specific regulation in LO 7/2021, which provides, in Article 6, in particular, that the data must be processed lawfully and fairly and not be processed in a manner incompatible with the determined, explicit, and legitimate purposes for which they were collected, and all reasonable measures must be taken to erase or rectify, without undue delay, personal data that are inaccurate with respect to the purposes for which they are processed. According to the provisions of the aforementioned article, the data will be adequate, relevant, and not excessive in relation to the purposes for which they are processed and will be retained in a manner that allows the identification of the data subject for a period not exceeding that necessary for such purposes.

Regarding the principle of lawfulness, Article 11 of this Organic Law states that “the processing shall only be lawful to the extent that it is necessary for the purposes indicated in Article 1 and is carried out by a competent authority in the exercise of its functions.”

If it involves the processing of special categories of personal data, it will only be permitted when it is strictly necessary and one of the circumstances provided for in Article 13 of LO 7/2021 is met.

Concerning the retention of personal data, Article 8 of the same LO 7/2021 establishes the following: “Article 8. Retention and Review Periods.

1. The data controller shall determine that the retention of personal data takes place only for the time necessary to fulfill the purposes provided for in Article 1.

2. The data controller must review the necessity of retaining, limiting, or erasing the set of personal data contained in each of the processing activities under its responsibility, at most every three years, paying special attention in each review to the age of the affected individual, the nature of the...

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data and the conclusion of a criminal investigation or procedure. If possible, this will be done through appropriate automated processing.

3. As a general rule, the maximum period for the deletion of data shall be twenty years, unless there are factors such as the existence of open investigations or crimes that have not expired, the non-conclusion of the execution of the penalty, recidivism, the need to protect victims, or other motivated circumstances that make it necessary to process the data for the fulfillment of the purposes of Article 1.”

The exercise of the right to deletion is regulated in Articles 23 and following of LO 7/2021.

In accordance with the provisions of Article 23 of LO 7/2021:

“2. The data controller, on its own initiative or as a result of the exercise of the right to deletion by the data subject, shall delete the personal data without undue delay and, in any case, within a maximum period of one month from the time it becomes aware, when the processing infringes Articles 6, 11, or 13, or when the personal data must be deleted by virtue of a legal obligation to which it is subject.

(...)

5. When personal data has been rectified or deleted or the processing has been restricted, the data controller shall notify the recipients, who must rectify or delete the personal data under their responsibility or limit its processing.”

Furthermore, Article 24 of LO 7/2021 establishes a series of cases in which the exercise of the rights to information, access, rectification, deletion of personal data, and limitation of their processing may be restricted. In this regard, the aforementioned article determines the following:

“1. The data controller may postpone, limit, or omit the information referred to in Article 21.2, as well as deny, in whole or in part, requests for the exercise of the rights contemplated in Articles 22 and 23, provided that, taking into account the fundamental rights and legitimate interests of the affected person, it is necessary and proportional to achieve the following purposes:

- a) Preventing the obstruction of inquiries, investigations, or judicial proceedings.
- b) Avoiding harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the execution of criminal sanctions.
- c) Protecting public safety.
- d) Protecting National Security.
- e) Protecting the rights and freedoms of other persons.

2. In the event of a restriction of the rights contemplated in Articles 22 and 23, the data controller shall inform the data subject in writing without undue delay, and in any case, within a period of one month from the time it becomes aware, of such restriction.”

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restriction, the reasons for it, as well as the possibilities of filing a complaint with the data protection authority, without prejudice to other judicial actions that may be exercised under the provisions of this Organic Law.

The reasons for the restriction may be omitted or replaced with neutral wording when the disclosure of the reasons for the restriction could jeopardize the purposes referred to in the previous section.

3. The data controller shall document the factual or legal grounds on which the decision to deny the exercise of the right of access is based. This information shall be made available to the data protection

authorities.”

And Article 25 of the same Organic Law provides as follows:

“Article 25. Exercise of the rights of the data subject through the data protection authority.

1. In cases where there is a postponement, limitation, or omission of the information referred to in Article 21 or a restriction on the exercise of the rights contemplated in Articles 22 and 23, under the terms provided in Article 24, the data subject may exercise their rights through the competent data protection authority. The data controller shall inform the data subject of this possibility.

2. When, pursuant to the provisions of the previous section, rights are exercised through the data protection authority, it must inform the data subject, at a minimum, of the completion of all necessary checks or the corresponding review and of their right to file a contentious-administrative appeal.”

On the other hand, during the instruction of this procedure, the respondent has informed about the procedure and requirements that apply for the deletion of personal data registered in the VioGén System, stating that “In general, they will be deleted when 20 years have passed since the case ceased to be attended to by the police or the police protection ended, provided that there has been no recurrence, reoffending, or breaches of judicial measures or penalties during that entire period. The data of individuals involved in judicial proceedings and investigations related to the cases: May be deleted when requested, provided there is a final judicial resolution of definitive dismissal, a final acquittal sentence, and the cancellation of the criminal (judicial) records derived from them.”

Furthermore, according to the information provided by the respondent, it is verified that a specific form has been enabled for the exercise of this right, “Specific Rights Exercise Form for the processing of personal data ‘Comprehensive Case Monitoring System for Gender Violence’ (not valid for other treatments),” in which the data subject must detail “the information derived from their inclusion in the System” (crime, date, police proceedings number, case or procedure number) and provide the documents (orders or sentences) “that justify the cancellation request and that prove the firmness of the resolutions and the conclusion.”

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of the procedure (acquittal, archiving, dismissal, enforcement of compliance with the sentence (for these cases, prior accreditation of cancellation of criminal record is required).

However, it should be noted that the personal data protection regulations do not establish any specific and concrete procedure for the exercise of rights, so the interested party is not obliged to use the specific channels provided by the data controller.

In this case, regarding the present procedure, the following circumstances are taken into account:

1. On March 20, 2018, the claimant addressed the Civil Guard requesting the deletion of police records that appeared in the “INTPOL” file, specifically the police proceedings of ***DATE.1 and in procedure XX/XXXX-V.

This request was resolved by the General Directorate of the Civil Guard on April 16, 2018, granting the requested deletion of personal data.

Considering the object of that request, related to the data recorded in the “INTPOL” file, the resolution issued does not cover the annotations concerning the claimant recorded in the VioGén System.

2. Written “Request for Cancellation of VioGén Police Records” submitted and signed by the claimant and addressed to the “Secretary of State for Security, Coordination and Studies Cabinet,” registered on April 2, 2018, through which the exercise of the right to cancel personal data appearing in the VioGén file was requested, regarding the police proceedings (...) of the Civil Guard Command of ***LOCALITY.1 of ***DATE.1 and regarding the actions (...) of the Criminal Court (...) of

***LOCALITY.2. This request was submitted to the Civil Guard, (...).

Although the request was correctly formalized, there is no record that the responsible entity provided a proper response to it.

However, any consequence that could have arisen from this action was already time-barred by the date the complaint that motivated the present procedure was received by this AEPD.

3. By means of a written communication addressed to the “General Directorate of Coordination and Studies of the Ministry of the Interior,” dated January 18, 2024, and submitted to the General Registry of the Government Delegation of (...) on March 19, 2024, the claimant exercised the rights of access and deletion of their personal data recorded in the VioGén System. Specifically, in this request, the claimant indicated the following:

“That the request for cancellation made previously is reiterated” (referring to the request made in April 2018, to which reference was made in the text of the request).

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Despite this, the responding party, by means of a written communication dated April 24, 2024, from the Secretary of State for Security (General Directorate of Coordination and Studies), responded only to the exercised right of access, stating regarding the right of deletion that “We inform you that we have not received your request for deletion of data in the VioGén System at this General Directorate. It is informed that the necessary documentation, as well as the established procedure to exercise your right, is available on the Ministry of the Interior’s website, the link to which is (...).”

This response cannot be considered valid, since the right of deletion was exercised precisely through the written communication to which the response was made, the validity of which cannot be denied due to the fact that the claimant did not use the form enabled for this purpose by the aforementioned General Directorate.

Thus, regarding the exercised right of deletion, it is appropriate to uphold the complaint filed with this AEPD and require the General Directorate of Coordination and Studies to respond to the responding party.

VII

Compensation for damages

The claimant has requested that this AEPD determine the “appropriate compensation for damages.”

Regarding this issue, Article 53 of LO 7/2021 establishes the following:

“Article 53. Right to compensation from entities in the public sector.

1. Interested parties shall have the right to be compensated by the data controller, or by the data processor when they are part of the public sector, in the event that they suffer damage or injury to their property or rights as a result of non-compliance with the provisions of this Organic Law.

2. When the entity that breaches the provisions of this Organic Law is considered a public administration, liability shall be demanded in accordance with the legislation regulating the regime of patrimonial liability provided for in the regulations on the common administrative procedure of public administrations and on the legal regime of the public sector.

3. In the event that the action originates from a judicial body or the Public Prosecutor’s Office when the processing is carried out for jurisdictional purposes, liability shall be governed by the provisions of Title V of Book III of Organic Law 6/1985, of July 1, on the Judiciary.”

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. against the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES, with NIF S2800109G, regarding the right of access to their personal data recorded in the VioGén System.

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SECOND: TO ESTIMATE the claim made by A.A.A. considering that the provisions of Article 23 of LO 7/2021 have been infringed and to urge the SECRETARY OF STATE FOR SECURITY, GENERAL

DIRECTORATE OF COORDINATION AND STUDIES, with NIF S2800109G, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution may result in the commission of an infringement classified under Article 58.m) of LO 7/2021, which will be sanctioned in accordance with Article 62 of the same Organic Law.

THIRD: TO NOTIFY this resolution to A.A.A. and to the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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